

Planning Commission Minutes of the Proceedings - Final

Historic Courthouse
310 W 19th Street
Cheyenne, WY 82001

Laramie County Planning Commission
Prepared by the Laramie County Planning & Development Office
Laramie County, Wyoming

Thursday, June 27, 2024

3:30 PM

Commissioners Board Room

Call To Order

Chairman Caughey called the meeting to order at 3:45 p.m. Guests were welcomed to the meeting and the assembly joined in the Pledge of Allegiance. Chairman Caughey announced that the meeting rooms audio and visual were experiencing problems and technicians were working to resolve the problems but there may be unavoidable interruptions to the sound system.

Roll Call

Present	Jason Caughey, Jack Stadel, John Watkins, Mark Smith
Excused	Natacha Gaspar

Approval of Minutes

Consideration of Minutes of the Proceedings for May 23, 2024,

[24 - 318](#)

Attachments: [PC 5.23.24 Draft](#)

Jack Stadel moved, seconded by Mark Smith to approve the Minutes of the Proceedings for May 23, 2024. Vote 4-0.

Aye: Caughey, Stadel, Watkins, Smith

Excused: Gaspar

Land Use:Variances/Board App./Plats

PUBLIC HEARING regarding a review and recommendation of the Preliminary Development Plan for Cowboy Kids at Ridley Ranch.

[24 - 331](#)

Attachments: [PZ-24-00041 PC 6.27.24 Staff Packet](#)

Cate Cundall, Associate Planner, said that AVI, PC, on behalf of Cowboy Kids Land Co., LLC, amended their Preliminary Development Plan application for Cowboy Kids at Ridley Ranch. The amended plan now includes 283.1 acres that contains 41 buildable tracts and 4 nonbuildable open space tracts. Three additional open space lots were added and the gross acreage per tract increased to 6.25 acres. All open space tracts will be held under common ownership and cannot be divided or developed.

Access easements were increased to 80 feet and all lots are now served by more than one access. Any development of the tracts for commercial use will require a site plan planning action process. The subdivision is located in the LU zone district and no zone change is included in the approval of the PDP application.

If the PDP is approved the next step for the applicant is to submit a subdivision permit and plat application to Planning and Development and a Chapter 23 application to WY DEQ. Mark Christensen, applicants agent, was present to answer questions.

Chairman Caughey opened the Public Hearing. Speaking in opposition of the project were: Troy McLees, Steve Cooke, Eric Lundgren, and David Webster. Concerns included lot sizes, undesignated commercial lots, averaging lot sizes using open space, road maintenance, large inventory of unsold residential lots, contamination of existing wells, and impacts to neighborhood from future commercial developments. Hearing no further comments the public hearing was closed.

Responses to concerns included: new technology for small lot septic systems, D.E.O. and S.E.O. approval prior to recordation of the Subdivision Plat, stricter S.E.O. requirements for commercial wells than residential wells, alignment of Road 220 access meets Public Works request.

Chairman Caughey called for a motion and discussion. Chairman Caughey said that he has been on the Planning Commission for six years and this development is different than what is customarily seen but that this application meets Laramie County Land Use Regulations and State Statutes. He understands the concerns of the development of the larger lots but any commercial developments will be required to go through the planning process for a Site Plan.

Mark Smith moved, seconded by John Watkins to approve the Cowboy Kids at Ridley Ranch Preliminary Development Plan with one condition and adopt the findings of fact a of the staff report. Vote 4-0.

Aye: Caughey, Stadel, Watkins, Smith

Excused: Gaspar

PUBLIC HEARING regarding a Zone Change and Subdivision Permit and Plat for Mesa Tracts, 5th Filing, located at Tract 11, Mesa Tracts, Laramie County, WY.

[24 - 322](#)

Attachments: [PZ-24-00043&48 LCPC STAFF REPORT PKG 6.13.24](#)

Bryce Hamilton, Associate Planner, said that the Ramonda Niland Trust submitted an application for the Mesa Tracts, 5th Filing Subdivision Permit and Plat located at 8420 E. Pershing Blvd. This 16.55 acre tract will be divided into three tracts approximately 5.45 acres each. Currently there is one dwelling located on the subject

property.

Also requested was a zone change from A-2 to AR to bring the smaller lots being created into compliance with the LCLUR lot size requirements. Criteria for granting a zone change has been met in accordance with section 1-2-103 of the LCLUR.

Access will be provided by a private 40' access easement located on the east side of the subdivision. Agency comments requested the extension of Blue Mesa Road from the east across the proposed plat instead of the planned private access.

Chairman Caughey opened the Public Hearing. Seth Lloyd, City of Cheyenne, asked that the extension of Blue Mesa Road be required instead of the private access. Shane Hansen, applicants agent, responded that his client did not want to give ROW for Blue Mesa Road. Hearing no further comments the hearing was closed and Chairman Caughey called for a motion and discussion.

Jack Stadel moved, seconded by Mark Smith to recommend approval of a Zone Change and Subdivision Permit and Plat for Mesa Tracts, 5th Filing to the Board of County Commissioners. Vote 4-0.

Aye: Caughey, Stadel, Watkins, Smith

Excused: Gaspar

PUBLIC HEARING regarding a Zone Change from AR-Agricultural Residential to MU-Mixed Use for Tract 2, Church of Christ Subdivision, 1st Filing, and Tract 2, Church of Christ, 2nd Filing, Laramie County, WY.

[24 - 321](#)

Attachments: [PZ-24-00047 PC Meeting Packet 6.27.24](#)

Commission Member John Watkins announced that he would be recusing himself from this agenda item and exited the room.

Cate Cundall, Associate Planner, said that an application for a zone change was received from Cheyenne Church of Christ and Airport Church of Christ for Tract 2, Church of Christ Subdivision, 1st Filing and Tract 2, Church of Christ Subdivision, 2nd Filing. The application was submitted to change the zone district from AR to MU to accommodate commercial uses for these parcels.

Also submitted was an application for an Administrative Plat for Tract 1, Church of Christ Subdivision, 1st Filing, Laramie County, WY. The purpose of the application is to divide a 17.19 acre parcel into two tracts, to be known as Church of Christ Subdivision, 2nd Filing. Tract 1 will be an 11.92 acre tract that includes the existing church and Tract 2 will be 5.25 acres of vacant land that will be sold. The Administrative Plat application will be approved by the Board of County Commissioners.

Shane Hansen, applicant's agent, was present to answer questions.

Chairman Caughey opened the Public Hearing. Speaking in opposition to the zone change were Leona Lowe, Jeff Reif, Clint Taylor, and Joanne Greenwalt. Concerns raised were increase in traffic, commercial development is not wanted, decreased property valuations, does not want multi-family development, and keep neighborhood as is. Hearing no further comments Chairman Caughey closed the hearing and called for a motion and discussion.

Jack Stadel said that he is not aware of any multi-family projects approved in the county unless it was connected to a public water and sewer system. It is almost impossible to meet all the requirements for multi-family with a private well and septic system.

Jack Stadel moved, seconded by Mark Smith to recommend approval of the Zone Change from AR to MU for Tract 2, Church of Christ Subdivision, 1st Filing and Tract 2, Church of Christ Subdivision, 2nd Filing to the Laramie County Board of Commissioners with one condition. Vote 3-0.

Aye: Caughey, Stadel, Smith

Excused: Gaspar

Recused: Watkins

PUBLIC HEARING for the review and action of a Variance for the "Williams Street Modular Home" setback requirement to three feet, six inches on the rear side of the tract.

[24 - 332](#)

Attachments: [PZ-24-00055 PC Meeting Packet](#)

Cate Cundall, Associate Planner, said that 210 Properties, LLC, submitted an application seeking approval of a rear yard variance for a manufactured home. They are requesting a 16.5' setback variance to allow the structure to be set 3.5 feet from the rear yard lot line. There is an existing fifteen foot easement on the east side of the lot that makes the lot too narrow for angling the trailer to allow it to sit within the setbacks on all four sides.

The use or enjoyment of adjacent properties would not be affected as the proposed variance would match or exceed the setback distances of adjacent properties. The structure to the north of the subject property appears to have no setback distance from the back of the property. Approval of the variance would not harm the public safety and welfare nor alter the essential character of the neighborhood. It would be substantially equivalent to the other landowners in the neighborhood, which are grandfathered as non-conforming. The variance appllance meets all the criteria for granting a variance.

Chairman Caughey opened the public hearing and hearing no comments closed the hearing and called for a motion and discussion.

John Watkins moved, seconded by Jack Stadel to approve a reduction in the minimum required rear setback for Lot 10, Block 2, Terry Homesites, Laramie County, WY with the condition that there is an exterior wall modification for a fire wall on the north side of the home as required by the Building Official to meet the 2021 IRC table R302.1(1) requirement. Vote 4-0.

Adjournment

The next meeting will held on July 11, 2024.

There being no further business Chairman Caughey adjourned the meeting at 5:15 p.m.

CERTIFICATION

True and correct copy of the Minutes of the Proceedings for Thursday June 27, 2024.

Approved by the Laramie County Planning Commission on Thursday, July 11, 2024.